

Dhirendra Pratap Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 16 September 2009 · Writ-C No. 49419 of 2009 · Writ-C No. 49419 of 2009 · **Writ dismissed; relegated to s.127 appeal.**

HEADNOTE

Inspection found a factory run on a domestic connection; after reply, a final assessment of Rs. 5,91,363 and a recovery certificate followed. The Court held that para 8.1(b) of the U.P. Electricity Supply Code, 2005 had prima facie been followed, and dismissed the writ for the statutory appeal under s.127 of the Electricity Act, 2003.

FACTUAL SUMMARY

Inspecting staff of the Executive Engineer found the petitioner running a polythene-bag factory with a 10 HP motor behind his house on a domestic connection. An FIR was lodged and a provisional assessment served. After his reply of 20 March 2009, a final assessment dated 5 May 2009 confirmed the demand and a recovery certificate issued for Rs. 5,91,363. He alleged that police had filed a final report in the theft case and that checking, inspection and assessment procedure had not been followed before recovery.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1(b)

theft assessment procedure

HOLDING

Where a provisional assessment is served, the consumer is heard on reply, a final assessment confirms that demand, and a recovery certificate is issued, the procedure under para 8.1(b) of the U.P. Electricity Supply Code, 2005 is prima facie followed. ¶ 1

HOLDING-UNIT · EA2003::127

statutory appeal as alternative remedy

HOLDING

A writ challenging such assessment and recovery is dismissed on the ground of alternative remedy; remaining grievance is to be raised in the statutory appeal under section 127 of the Electricity Act, 2003. ¶ 1

PRINCIPLE TAGS

final-assessment-order-relegates-assessee-to-section-127-appeal

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no-recovery-without-final-assessment-clause-8.1(b)

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NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — EFFECT OF POLICE FINAL REPORT IN THE THEFT CASE ON THE ASSESSMENT

Left to the s.127 appeal. ¶ 1

NOT DECIDED — MERITS AND QUANTUM OF THE RS. 5,91,363 ASSESSMENT

Not examined; writ dismissed for alternative remedy. ¶ 1

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.